

Resolution

Version 2.7 released on 7/1/25

PWC121680



CITY COUNCIL USE ONLY

Date Received: _____
Committee Date: _____
1st Agenda Date: _____

Tracking #: _____

Committee: _____
Hearing Date: _____
2nd Agenda Date: _____

CITY CLERK USE ONLY

☐ Scanned

Date: 02 04.2026

☐ Posted

Item # 2601 00265

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Board Approval

Department
Public Works

Contact Name
Michelle L. Lester

Other Board Name

Email
mlester@cityoftulsa.org

City Council Approval

☒ Yes ☐ No

Phone
918-596-7262

Resolution Type
Condemnation

Owner-Grantor
Timothy C. C. Johnson and Seamus W. A. Johnson Liv

Amount

Case Number

TMAPC Number

Council District
6

Description (Subject)

Bid/Project Number
ES 2022-09

Section
24

Township
19

Range
14

Addition
Unplatted

Lot

Block

Address
19009 E 41st Street

Budget

Funding Source(s)

2131S00004.SewerLines.Sewer.7500N.75003308.541101:

TOTAL:

\$0.00

Approvals

Department:

Legal:

Board:

Mayor:

Other:

Date:

Date:

Date:

Date:

Date:

Policy Statement

Background Information

Spunky Creek Interceptor Main Stem South Phase 3 - Project No. ES 2022-09.

Owner: Timothy Charles Christopher Johnson and Seamus William Abner Johnson Revocable Living Trust dated 9/12/23

Parcel 1A - Location: 19009 41st Street

The Public Works Department advises that an existing public necessity requires the acquisition of property located at 19009 E 41st Street, City of Tulsa, Tulsa County. Efforts to purchase an easement for fair market value of \$3,184.00 could not be completed due to a disagreement in value with one owner, the other owner did not respond.

PDZ

MSL

bh

Summation of the Requested Action

Approve the Resolution.

Emergency Clause?

☐ Yes

☒ No

Reason for Emergency Clause

Processing Information for City Clerk's Office

Post Execution Processing

☐ Mail vendor copy (add'l signature copies attached)

☐ Must be filed with other governmental entity

☐ Add'l governmental entity approval(s) required

Additional Routing and Processing Details

2025-KPZ-0630

(Published in the Tulsa World,

_____, 202____)

Resolution No. _____

RESOLUTION

A RESOLUTION DECLARING THE PUBLIC NECESSITY FOR THE TAKING, APPROPRIATION, AND CONDEMNATION OF CERTAIN TRACTS OF LAND IN TULSA COUNTY, STATE OF OKLAHOMA, FOR **SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3 – PROJECT NO. ES 2022-09** PURPOSES IN CONNECTION WITH THE CONSTRUCTION OF ADDITIONS AND EXTENSIONS TO THE CITY OF TULSA; AND AUTHORIZING AND DIRECTING PROPER OFFICIALS OF THE CITY OF TULSA TO INSTITUTE PROCEEDINGS TO CONDEMN SAID LANDS.

WHEREAS, there has been created a construction project designated as Project No. **ES 2022-09- SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3**.

WHEREAS, employees and agents of the City of Tulsa have been unable to acquire certain tracts of land necessary for the construction of **SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3** project at its fair market value; and

WHEREAS, the public health, safety and welfare necessitate that **SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3** project be constructed as an extension and improvement to the City of Tulsa.

NOW, THEREFORE, BE IT RESOLVED BY THE COUNCIL OF THE CITY OF TULSA, OKLAHOMA AS FOLLOWS:

Section 1. It is hereby declared to be necessary for the public health, safety and convenience of the City of Tulsa to acquire each and all of the following rights, title and interests: (1) a **Sanitary Sewer Easement** and a **Temporary Construction Easement**, over, across, through and under the property, (2) the right to excavate, dredge, cut away and remove, excavated material from the property, (3) title to any excavated materials, and (4) the right to place or relocate dredged or excavated material, all on lands situated in the County of Tulsa, State of Oklahoma, which are more particularly identified as follows:

OWNER: Semus William Abner Johnson Revocable Living Trust dated 9/12/2023
7970 Patriot Lane
Sapulpa OK 74066

&

Timothy Charles Christopher Johnson
19009 E 41st Street
Tulsa OK 74134



PROPERTY

ADDRESS: 19009 E 41st Street, Tulsa, OK 74134
SEE EXHIBIT "A" as to nature and description of the taking

in order to provide a **Sanitary Sewer Easement and Temporary Construction Easement** on which to construct **SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3** for the use of the inhabitants of the City of Tulsa, Project No. **ES 2022-09, SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3**, together with the right of ingress and egress to and from the property, for the purpose of installing, constructing, erecting, maintaining, relaying, and reconstructing of **SPUNKY CREEK INTERCEPTOR MAIN STEM SOUTH PHASE 3**.

Section 2. It is hereby found and determined that these rights, title and interests cannot be acquired by negotiation or purchase at their fair market value and for that reason, upon the recommendation of the Mayor and City Council, the City Attorney of the City of Tulsa is authorized and directed to institute the necessary legal proceedings to acquire the rights, title and interests identified in Section 1 of this Resolution, by the exercise of the power of eminent domain, and to take such further action as may be convenient or necessary to acquire the identified property interests.

ADOPTED by the Council this ____ day of _____, 202__.

Phil Lakin, Jr., Chairman, City Council

sig

OFFICE OF THE MAYOR

Received by the Mayor this ____ day of _____, 202__, at _____ o'clock,
_____.m.

Monroe Nichols IV
Mayor

By: Secretary

APPROVED by the Mayor of the City of Tulsa, Oklahoma, this _____ day of
_____, 202__, at _____ o'clock, _____.m.

Monroe Nichols IV
Mayor

(SEAL)
ATTEST:

City Clerk

APPROVED:

City Attorney

Eq

[Signature]

Director

PARCEL NO. 1A
 COUNTY TULSA

LEGAL DESCRIPTION

SEAMUS WILLIAM ABNER JOHNSON
 REVOCABLE LIVING TRUST
 PERMANENT EASEMENT

A TRACT OF LAND LOCATED IN THE WEST HALF OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER (W/2 SE/4 SE/4) OF SECTION TWENTY-FOUR (24), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

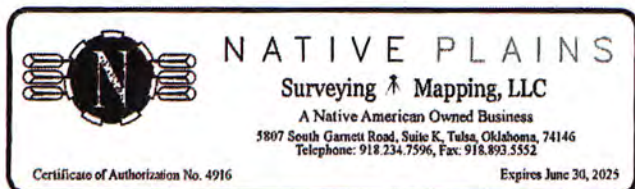
COMMENCING AT THE SOUTHEAST CORNER OF SAID SE/4; THENCE SOUTH 88°37'06" WEST AND ALONG THE SOUTH LINE OF SAID SE/4, FOR A DISTANCE OF 658.85 FEET TO THE SOUTHEAST CORNER OF SAID W/2 SE/4 SE/4; THENCE NORTH 01°18'44" WEST AND ALONG THE EAST LINE OF SAID W/2 SE/4 SE/4, FOR A DISTANCE OF 24.75 FEET TO THE **POINT OF BEGINNING**; THENCE SOUTH 88°37'06" WEST AND PARALLEL WITH SAID SOUTH LINE, FOR A DISTANCE OF 46.29 FEET; THENCE NORTH 21°21'39" EAST, FOR A DISTANCE OF 120.09 FEET TO A POINT ON THE EAST LINE OF SAID W/2 SE/4 SE/4; THENCE SOUTH 01°18'44" EAST AND ALONG SAID EAST LINE, FOR A DISTANCE OF 110.75 FEET TO THE **POINT OF BEGINNING**. CONTAINING 2,563.51 SQUARE FEET OR 0.06 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

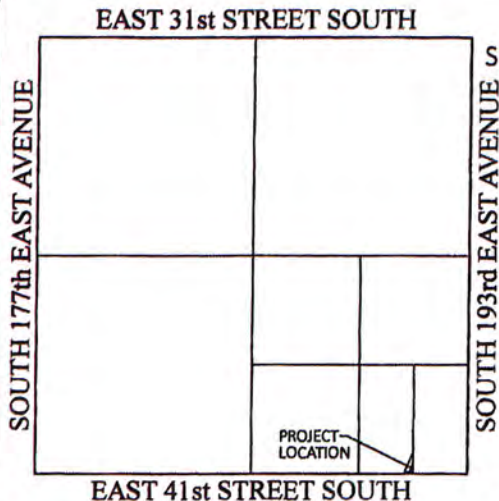
REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

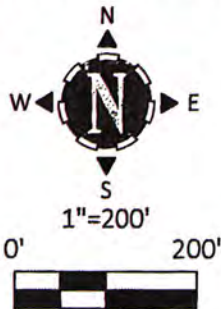

 NATHANIEL J. REED
 DATE OF SIGNATURE 2-19-2024
 DATE OF LAST SITE VISIT 2-19-2024



SHEET 2 OF 2

PLAT OF SURVEYSEAMUS WILLIAM ABNER JOHNSON
REVOCABLE LIVING TRUST
PERMANENT EASEMENTPARCEL NO. 1A
COUNTY TULSALEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE W/2 SE/4 SE/4, SECTION 24, TOWNSHIP 19
NORTH, RANGE 14 EAST, TULSA COUNTY,
STATE OF OKLAHOMASEC 24 T 19 N R 14 E

TEMPORARY EASEMENT	0.00	SF	0.00	ACRES
PERMANENT EASEMENT	2,563.51	SF	0.06	ACRES

SEAMUS WILLIAM ABNER JOHNSON
REVOCABLE LIVING TRUST
W/2 SE/4 SE/4
QUIT CLAIM DEED
DOC. #2023074267

LINE	BEARING	DISTANCE
L1	S 88°37'06" W	658.85'
L2	N 01°18'44" W	24.75'
L3	S 88°37'06" W	46.29'
L4	N 21°21'39" E	120.09'
L5	S 01°18'44" E	110.75'

25.25' WATER EASEMENT
TO CITY OF TULSA
BOOK 4965, PAGE 91924.75' STATUTORY R/W
E. 41st ST.SOUTH LINE SE/4
SEC. 24, T.19N., R.14E.POC
SE CORNER SE/4
SEC. 24, T.19N., R.14E.I, NATHANIEL J. REED, OF THE STATE OF OKLAHOMA, AND A
PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY THAT THE
ABOVE SHOWN PLAT OF SURVEY IS TRUE AND CORRECT TO
THE BEST OF MY KNOWLEDGE AND MEETS THE MINIMUM
TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE
OF OKLAHOMA.**LEGEND**POB POINT OF BEGINNING
POC POINT OF COMMENCEMENT
• 60D NAIL SETBASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

NATHANIEL J. REED, P.L.S. 174

DATE OF SIGNATURE

DATE OF LAST SITE VISIT

EXHIBIT "A"

PARCEL NO. 1.1
COUNTY TULSA

LEGAL DESCRIPTION

TEMPORARY EASEMENT

A TRACT OF LAND LOCATED IN THE WEST HALF OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER (W/2 SE/4 SE/4) OF SECTION TWENTY-FOUR (24), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHEAST CORNER OF SAID SE/4; THENCE SOUTH 88°37'06" WEST AND ALONG THE SOUTH LINE OF SAID SE/4, FOR A DISTANCE OF 705.11 FEET; THENCE NORTH 01°22'54" WEST AND PERPENDICULAR TO SAID SOUTH LINE, FOR A DISTANCE OF 24.75 FEET TO THE **POINT OF BEGINNING**; THENCE SOUTH 88°37'06" WEST AND PARALLEL WITH SAID SOUTH LINE, FOR A DISTANCE OF 54.22 FEET; THENCE NORTH 21°21'39" EAST, FOR A DISTANCE OF 260.74 FEET TO A POINT ON THE EAST LINE OF SAID W/2 SE/4 SE/4; THENCE SOUTH 01°18'44" EAST AND ALONG SAID EAST LINE, FOR A DISTANCE OF 129.71 FEET; THENCE SOUTH 21°21'39" WEST, FOR A DISTANCE OF 120.09 FEET TO THE **POINT OF BEGINNING**. CONTAINING 9,520.76 SQUARE FEET OR 0.22 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.


NATHANIEL J. REED
DATE OF SIGNATURE 2-6-2025
DATE OF LAST SITE VISIT 12-12-2024

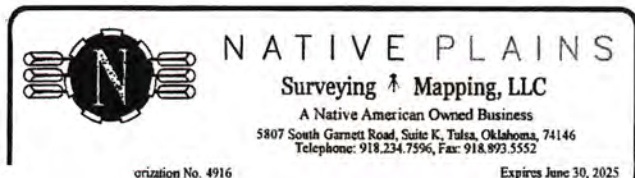


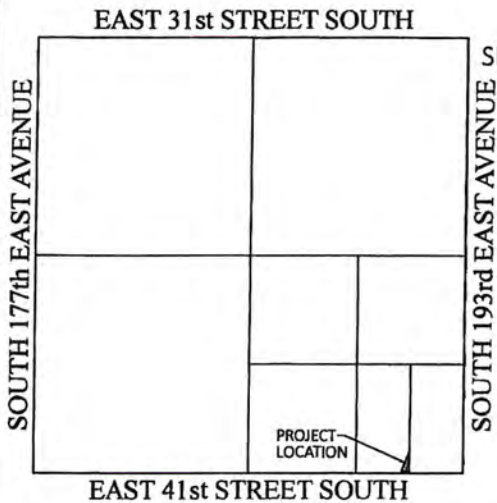
EXHIBIT "A"

SHEET 2 OF 2

PLAT OF SURVEY

SEAMUS WILLIAM ABNER JOHNSON
REVOCABLE LIVING TRUST
TEMPORARY EASEMENT

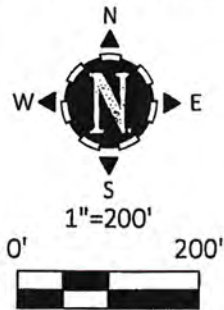
PARCEL NO. 1.1
COUNTY TULSA



LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE W/2 SE/4 SE/4, SECTION 24, TOWNSHIP 19
NORTH, RANGE 14 EAST, TULSA COUNTY,
STATE OF OKLAHOMA

SEC 24 T 19 N R 14 E

TEMPORARY EASEMENT	9,520.76	SF	0.22	ACRES
PERMANENT EASEMENT	0.00	SF	0.00	ACRES

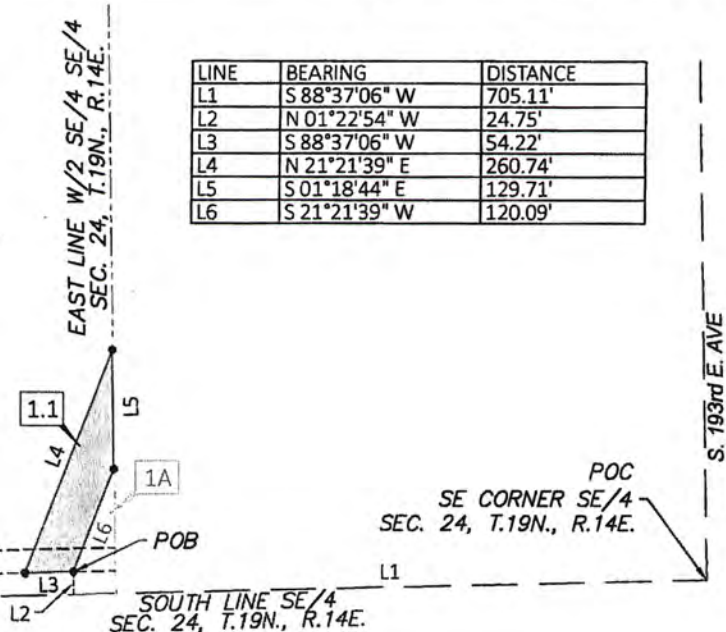


W/2 SE/4 SE/4
QUIT CLAIM DEED
DOC. #2023074267

LINE	BEARING	DISTANCE
L1	S 88°37'06" W	705.11'
L2	N 01°22'54" W	24.75'
L3	S 88°37'06" W	54.22'
L4	N 21°21'39" E	260.74'
L5	S 01°18'44" E	129.71'
L6	S 21°21'39" W	120.09'

25.25' WATER EASEMENT
TO CITY OF TULSA
BOOK 4965, PAGE 919

24.75' STATUTORY R/W
E. 41st ST.



I, NATHANIEL J. REED, OF THE STATE OF OKLAHOMA, AND A PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY THAT THE ABOVE SHOWN PLAT OF SURVEY IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

LEGEND
POB POINT OF BEGINNING
POC POINT OF COMMENCEMENT
• 60D NAIL SET

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
COORDINATE SYSTEM, NORTH ZONE (35011 NAD 83 (1993).

NATHANIEL J. REED, P.L.S. 1714
DATE OF SIGNATURE 2.8.2023
DATE OF LAST SITE VISIT 12.17.2024

EXHIBIT "A"

MUNIS for ES 2022-09

As of 9/5/2025

Project string

▲	Project *	2131S00004	Spunky Creek MS Interceptor S - C1
▲	Phase *	SewerLines	Sewer lines
▲	Task *	Sewer	Sewer projects
	Sub-Task *	7500N	TMUA Sewer Capital Projects

Name * Spunky Creek MS Interceptor S

Short Name * Spunky Crk

Status Active

Projected date range 03/24/2021 to 03/24/2025

Actual date range to

Project String Balances

GL Accounts

4

Project Year 2026

Original Budget	.00
Transfers - In	.00
Transfers - Out	.00
Revised Budget	982,373.88
Actual (Memo)	11,806.00
Encumbrances	100,786.00
SOY Encumbrances	.00
Requisitions	.00
Inception to SOY	546,951.89
Available	322,829.99
Percent Used	67.14

Project String Balances

GL Accounts

Default GL account

Fund SubFund Function

Org Object Project

75003308

541101

CONDEMNATION PARCEL STATUS

DATE:	November 20, 2025
PROJECT NAME:	Spunky Creek Interceptor Main Stem South Phase 3
PROJECT:	ES 2022-09
PARCEL NO.:	1A & 1.1
OWNER NAME:	Semus William Abner Johnson Revocable Living Trust dated 9/12/2023 (1/2 interest) & Timothy Charles Christopher Johnson (1/2 interest)
PROPERTY ADDRESS:	19009 E 41 st S, Tulsa, OK 74134
APPRAISED VALUE:	\$3,184.00
CITY FINAL OFFER:	\$3,184.00

REASONS FOR NON-ACCEPTANCE OF CITY'S OFFER:

- May 1, 2025 – Initial Offer Letter sent.
- June 13, 2025 – Second Offer Letter sent.
- July 15, 2025 – Final Offer Letter sent.
- Numerous email and phone conversations from May to July 2025 were unsuccessful primarily due to a disagreement between family owners (brothers) and excessive expectations.
- One of the owners wanted city water and sewer hook-up. City engineers determined that this is very expensive and would not be possible.

REASON FOR CONDEMNATION:

☒ Project time constraints	☒ Non-agreement between City & owner regarding value	☐ Title Issues
☐ Parcel is last one needed for project	☒ Non-responsive Owner	☒ Other (Please explain below)

OTHER: Please explain.

Multiple owners. One of the owners failed to respond. The other owner had excessive demands that were very expensive. Also, there were disagreements between owners.

OTHER COMMENTS: